AGREEMENT

This Agreement is made as on 18th day of **December 2024**, between **WELLRICK PHARMACEUTICALS PVT. LTD (herein after referred as THE COMPANY)** having Office at, **C-207, TITANIUM BUSINESS PARK, NEAR MAKARBA UNDERBRIDGE, MAKARBA, AHMEDABAD, GUJARAT – 380051.**

And

BRIDGECARE PHARMACEUTICALS LIMITED. **(herein after referred as THE DISTRIBUTOR)** having office at, **"Lascofed Building Plot 13, Isaacstan Close, Off Wempco Road Ojodu, Ogba, Lagos"** & is engaged in imports, distribution, sale and marketing of Pharmaceutical, Nutraceutical & Cosmetic products in **NIGERIA.**

Both the parties i.e. **THE COMPANY and THE DISTRIBUTOR** are willing to enter into agreement to market, distribute and sell the products on the terms and conditions as per annexure of products selected by **THE DISTRIBUTOR.**

ACTIVITIES:

During the validity of the present contract **THE DISTRIBUTOR** would market, sell, distribute, promote and follow registration procedures for importation of selected product as per **Annexure -I**, likewise **THE COMPANY** will assist **THE DISTRIBUTOR,** and provide all necessary documents required for the registration.

PRODUCTS AND PRICE:

Products shall be of all kinds i.e. **Pharmaceutical, Nutraceutical & Cosmetic Products** listed at **Annexure -I** and shall be revised/updated from time to time under the agreement of both parties. Such revision will be integral part of this agreement.

PRICE: Price of each product to be supplied will be decided from time to time & mutually agreed upon by both parties. Prices will be FOB (in USD) as mutually agreed by both parties. Freight charges will be borne by **THE DISTRIBUTOR** on actual basis.

THE DISTRIBUTOR shall always consider minimum 60 days as manufacturing cycle and hereby undertakes to place purchase orders in advance to build up and maintain adequate stocks so as to be able to meet the demand of customers at all times.

PRODUCT QUALITY:

THE COMPANY is fully responsible for the quality of all its products. **THE DISTRIBUTOR** must immediately inform **THE COMPANY** of any complaint concerning the qualities of the Product(s) in the event that the Product(s) must be recalled or withdrawn from the market, **THE DISTRIBUTOR** must take all the necessary measures to ensure the withdrawal from the market of all the products in the relevant lot. **THE DISTRIBUTOR** will be deemed to have accepted the Product unless it gives **THE COMPANY** a notice within **15 working days** of the receipt of the product to its warehouse in **NIGERIA**. If the defects in the products have arised due to any transportation / storage reasons, **THE DISTRIBUTOR** shall claim the loss directly from the insurance and **THE COMPANY** shall not be held responsible.

If **THE DISTRIBUTOR** informs **THE COMPANY** of product nonconformity, the parties agree to consult each other in order to resolve the issue. **THE COMPANY** may conduct testing of retain samples kept with them. If such consultation does not resolve the discrepancy within a further 30 days from **THE COMPANY** receiving the Notice of

Non Conformity, the parties agree to nominate an Independent Laboratory to carry out tests on representative samples taken from such delivery.

The results of the tests conducted by the Independent Laboratory will be binding on the both parties.

MINIMUM ANNUAL QUANTITIES OF THE PRODUCTS TO BE PURCHASED:

a) During each annual term of this Agreement, Distributor shall place with (WELLRICK Pharmaceuticals), minimum purchase order for each product having a value not less than that set forth in Selected Products List.

b) The responsibility of achieving the target is the responsibility of both parties.

c) Minimum quantity of order will be as per MOQ of manufacturer.

d) The Distributor can add the products even after the agreement as agreed mutually by the both companies.

DESIGN & ARTWORK:

Artwork & Mockup design will be approved by The Distributor according to the guidelines of **NIGERIA**.

PAYMENT TERMS:

The payment terms from the date of execution of this Agreement will be as under:

a. 50% along with Purchase Order.
b. 50% at the time of shipment.

WELLRICK shall invoice **The Distributor** for each order and **The Distributor** shall pay **WELLRICK** for each order.

The account details of **WELLRICK** is as under:

BANK NAME	AXIS BANK LTD
BANK ADDRESS	GROUND FLOOR HIMALAYA EMERALD,NEAR SHIVRANJANI CROSS ROAD,SATELLITE,AHMEDABAD-380015
ACCOUNT HOLDER NAME	WELLRICK PHARMACEUTICALS PRIVATE LIMITED
ACCOUNT TYPE	CURRENT
ACCOUNT NO	922020012608200
BRANCH CODE	3052
IFSC CODE	UTIB0003052
SWIFT CODE	AXISINBB058
MICR CODE	380211056

All charges outside Country such as custom duty, clearance charges, and transportation from Air / Sea port to warehouse in the territory would be borne by **THE DISTRIBUTOR**.

RIDGECARE PHARMA... LTD.

SIGN

EXCLUSIVE SUPPLY OF BRAND/MOLECULES:

Goods Supplied in the Brand Name of THE DISTRIBUTOR:

THE COMPANY will supply the goods in the BRAND (s) owned by the distributor and in such case brand ownership/trademark will lies with **THE DISTRIBUTOR**.

Goods Supplied in the Brand Name of THE COMPANY:

If **THE DISTRIBUTOR** opts to import the goods in the Brand Name of **THE COMPANY, THE DISTRIBUTOR** will not re-export or manufacture the products owned by **THE COMPANY** & vice versa (if applicable). For Exclusivity of such products to be specifically confirmed in writing and such written communication will become a part of this agreement. Terms and condition of such written communication mutually agreed upon between both parties will supersede.

INTELLECTUAL PROPERTY RIGHT (IPR): - BRAND OWNED by THE COMPANY

"Intellectual Property Right (IPR)" "Trademark and Copyright" in connection with **THE DISTRIBUTOR**, supply and delivery of the Products. Trademark includes the registered/unregistered Trademarks/trade name/product name/labels/designs of the Company used by **THE DISTRIBUTOR** during the term of this agreement for a limited purpose of trading in such products. Such Copyright includes artwork, design in the label and packing materials, etc.

THE COMPANY hereby grants **THE DISTRIBUTOR** a revocable, limited, non-assignable and non-exclusive license to apply and affix the trademark of the Company on or in relation to the Product manufactured for the Company only for the purpose of manufacture and packing of the Product.

Ownership and Rights of THE COMPANY:

a. **THE DISTRIBUTOR** recognizes the validity of the Trademarks and the ownership thereof by the Company and undertakes not to contest their validity or their ownership/ legal possession and the Manufacturer shall not disclose, infringe/ pass off or misuse the said marks during the tenure of this Agreement and thereafter.
b. The license to use such trademark shall be for a limited purpose of using the same for the Product.

RIDGECARE PHARMA LTD. SIGN

c. Nothing herein shall give **THE DISTRIBUTOR** any interest in the Trademarks or the goodwill attaching thereto or in any label, design, etc., used in connection therewith, and **THE DISTRIBUTOR** acknowledges and agrees that all rights and interest created through such usage of the Trademarks, labels, designs, etc., in connection with the Product, are to be used in such manner and with the result that all goodwill relating to the same shall accrue to **THE COMPANY** as the source and origin of such Product, and the Company shall be absolutely entitled to determine in every instance the manner of presentation and such other steps necessary or desirable to secure compliance with this Clause.

d. **THE DISTRIBUTOR** undertakes not to adopt or use any name, corporate name, trading name, title of establishment, or other commercial designation which includes any of the Trademarks, or any that is confusingly similar to any of them, without the prior written consent of **THE COMPANY**.

e. **THE DISTRIBUTOR** shall not at any time, manufacture, sell, deal in or otherwise be concerned with any product under any trademark or other designation which is an imitation or infringement of the Trademarks; and without in any limiting the generality of the foregoing, it is hereby expressly understood and stipulated that use of the words **"WERGGY"** in any form or fashion, or any graphic or phonetic rendering of them, on any product other than that of **THE COMPANY**, would constitute such imitation, unfair competition, passing off or infringement of the Trademarks.

f. **THE DISTRIBUTOR** shall during the continuance of this Agreement use its best endeavors to discover any infringement or passing off or suspected infringement or passing off or imitation of the marks coming to its knowledge and shall communicate the same to the Company and assist the Company in any action to be taken in such circumstances.

g. **THE DISTRIBUTOR** acknowledges that the copyright on the artwork and design on the labels affixed in conjunction with the trademark on the Products are owned by the Company and the Manufacturer undertakes not to contest their validity or their ownership and the Manufacturer shall not disclose or misuse any such copyright during the tenure of this agreement and for such period during which the copyright exists.

<u>THE DISTRIBUTOR Declaration:</u> **THE DISTRIBUTOR** hereby declares and confirms that it has not and shall not

a. at any time take any action which shall or may impair the right title or interest of **THE COMPANY** to the Trademarks or create any right, title or interest therein or thereto which may be adverse to that of **THE COMPANY**.

b. Use the Trademarks upon or in relation to any goods on its own account or otherwise or for any other purpose.

c. Use the Trademarks upon or in relation to any Products other than the said products.

d. Permit the use of the Trademarks by any other person, firm or body corporate.

e. Register any Trademark which is visually and/or phonetically deceptively similar to the Trademarks in any class.
f. Use any marks, which are similar to the Trademarks during or after the term of this Agreement.
g. Use any of the Trademarks belonging to **THE COMPANY**

CANCELLATION:

Either party shall have the right to terminate this Agreement because of a breach by the other party, upon ninety (180) days, in writing. In the following cases:

1) If either party winds up or goes bankrupt.

2) If either party breaches any provision hereof.

3) If the importer failed in registration exporter's products in **NIGERIA.**

REGISTRATION:

Further, if registration of products selected by **THE DISTRIBUTOR** is required to be registered with respective regulatory in the territory, then **THE DISTRIBUTOR** undertakes to file for the registration with local regulatory authority for one or more products as **THE DISTRIBUTOR** may deem appropriate and add such products in **Annexure -I**. The registration mentioned here does not include any IP registration whatsoever. The cost of the registration and or approvals of the selected products will be paid by **THE DISTRIBUTOR** and **THE COMPANY** will provide the required documentation as per extant guidelines of the **NIGERIA**. Such documents required for the registration to be informed to **THE COMPANY** well in advance.

In case, any GMP fee is to be paid, the same will be paid as per mutually agreed upon and expenses incurred by **THE DISTRIBUTOR** for the same to be reimbursed by **THE COMPANY** during commercial shipment.

PROMOTIONAL MATERIALS:

It is also specifically mentioned that in order to boost the sales, **THE COMPANY** will supply all the promotional materials viz. leaflet, product brochures, and any other items as agreed upon.

DISPUTE RESOLUTION

Any dispute or claim that might arise at any time among the two Parties in respect of this AGREEMENT or its rights shall be firstly solved friendly and a Win-Win attitude.

VALIDITY OF AGREEMENT

This Agreement shall remain valid for a period of 5 (Five) years commencing from the date of signing of this Agreement renewable only upon mutual written consent of both parties.

CONFIDENTIALITY

THE DISTRIBUTOR shall maintain in confidence and not use, except as is necessary to perform its obligations under this Agreement, any information proprietary or confidential to **THE COMPANY** (including without limitation technical information, experience or data regarding **THE COMPANY's** plans, programs, plants, processes, products, costs, equipment operation, marketing efforts and customers) which may come within its knowledge or the knowledge of its officers, employees or agents in the performance of this Agreement.

The foregoing obligations of confidentiality and use shall survive for a period of **five (5) years** after the termination or expiration of this Agreement.

TRANSFER OF RIGHT AND OBLIGATIONS:

This agreement, in whole or in part, shall not be assignable by either party hereto to any independent third party without the prior written consent of the other party hereto. It is expressly understood and agreed by the parties that the assignor of any rights hereunder shall remain bound by its duties and obligations hereunder.

FORCE MAJEURE

It is agreed that any delay, breach or failure on the part of either party in complying with terms and conditions of this agreement shall not be treated as default or breach or give rise to any claim for damage to or in favor of either party, if and to the extent, such delay, breach or failure is caused by occurrences beyond the control of either party including but not limited to acts of Good, fires, floods, explosions, war, civil commotion, strikes, lock out, statutory prohibitions and other similar causes.

The party claiming an event of force majeure shall notify the other party in writing within 30 days and provide all the particulars of the clause or event and date of its first occurrence. Failure to give such a notice to the other party shall deprive the party claiming force majeure to be relieved from performing its obligations under this agreement. If, the force majeure in question prevails for a continuous period in excess of three months, the parties shall enter into bonafide discussions for a maximum period of two weeks with a view to elevating its effects or to agree upon such alternative arrangements as may be fair and reasonable. In case no such agreement is agreed upon: the other party not affected by force majeure will be entitled to terminate this agreement by giving one month's notice to affected by force majeure.

MISCELLANEOUS

Termination of this agreement can be effected either on expiration of the period aforesaid by giving formal written notice (**3months in advance written notice**). Alternatively, in the case of Renewal to this agreement or termination of same can be affected by either **THE DISTRIBUTOR** or **THE COMPANY** by giving written notice 3 months in advance.

If either Party fails or refuses to perform or fulfil any obligation, term or condition of the Agreement, the non-defaulting Party shall be entitled to send to the other Party a written notice notifying it of the breach / failure and requiring the defaulting Party to rectify / remedy the breach / failure within a period of six (6) months from the date of receipt of notice. If the breach / failure is not rectified / modified within the six (6) months period, this Agreement shall automatically stand terminated and be cancelled without any further notice and without any obligation to pay any compensation to the defaulting Party.

This agreement shall be governed by and constructed in accordance with the Laws of India. All disputes arising through the performance of this agreement shall be amicably settled between the two parties using their best endeavors in good faith. Unresolved case will be referred to arbitration before any legal proceedings are initiated. In case if the arbitration proceedings are initiated by either parties& the place of arbitration will be Ahmadabad, India. The award made by the arbitration shall be final and binding on the parties.

Upon the termination of this Agreement for any reason, **THE DISTRIBUTOR** shall immediately cease to use the Trademark in any manner whatsoever (unless they have stock of **THE COMPANY** in its stores). Similarly, **THE COMPANY** shall immediately cease to use the Trademark of **THE DISTRIBUTOR** in any manner whatsoever.

No termination of this Agreement shall release or discharge a party from any debt obligation or liability which shall have accrued and remain to be performed by such party as at the date of such termination.

JURISDICTION

This agreement is construed in accordance to the law of India and any dispute, controversy or claim arising out of this agreement or to a breach hereof, including its interpretation, performance or termination, shall be finally settled by Tribunal of Arbitrators comprising of 3 arbitrators. Two arbitrators will be appointed by each of the undersigned parties of this agreement and third arbitrator will be appointed by these two arbitrators. Rules of Arbitration of the International Chamber of Commerce shall apply in arbitration procedure. The language of the proceedings shall be English and venue of arbitration will mutually agreed place in Ahmadabad, India.

IN WITNESS WHEREOF,

The Parties have caused this Agreement to be executed by their respective duly authorized signatories as of the date and year first written above.

FOR THE PRINCIPAL	***THE DISTRIBUTOR***
WELLRICK PHARMACEUTICALS PVT. LTD	***BRIDGECARE PHARMACEUTICALS LIMITED***
ARVIND	
DIRECTOR	CEO/Director

Annexure 1

Sr No.	Generic Name	Label Claim	Product Type	Packing Style	MOQ	RATE (FOB, In USD)
PHARMACEUTICAL						
1.	WERGGY WHEY PROTEIN POWDER	WHEY PROTEIN POWDER	PROTEIN POWDER	2 LB	750 Units	26.63
				5 LB	750 Units	66.56

Authorized Signatory:

Authorized Signatory:

WellRick Pharmaceuticals Pvt. Ltd.

BRIDGECARE PHARMACEUTICALS LIMITED